

26STCV10917 26STCV10917

County: los-angeles

Division: Civil Law and Motion

Department: 507

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Case Number: 26STCV10917 Hearing Date: August 3, 2026 Dept: 507

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 507

TENTATIVE RULING

YANG QIAN,

Plaintiffs,

v.

HOLLYWOOD CITIZEN NEWS LENDER, LP, ET AL.

Defendants.

Case No: 26STCV10917

Hearing Date: August 3, 2026

Calendar

Number: 8

Plaintiff Yang Qian filed four Applications for

Service of Summons by Delivery to the Secretary of State Pursuant to California

Corporations Code Section 1702(a) as to the following defendants: (1) Hollywood Citizen News Lender LP; (2)

Hollywood International Regional Center LLC; (3) Relevant Group LLC; (4) Hollywood Citizen News Manager LLC.

Plaintiff's Applications are (1) GRANTED as to Hollywood Citizen News Lender LP and DENIED as to Hollywood International Regional Center LLC, Relevant Group LLC and Hollywood News Manager LLC.

Background

Plaintiff Yang Qian alleges he was approached by Defendants Hollywood Citizen News Lender LP, Hollywood International Regional Center LLC, Relevant Group LLC and Hollywood Citizen News Manager LLC (collectively "Defendants") with a real investment project when he was 16 years old while residing in China. The real estate investment program was part of the EB-5 Immigrant Investor Program ("EB-5"). EB-5 allows for investors to become lawful permanent residents of the U.S. ("LPRs") in exchange for investment of a specified amount into a U.S. business that results in the creation of ten U.S. jobs. Defendants unlawfully used a "finder" to locate Plaintiff for purposes of the real estate investment project.

Plaintiff alleges he entered into a Limited Partnership Agreement ("LPA") and a Subscription Agreement (collectively the "Agreements") in connection with Defendants' real estate investment project. Pursuant to the Agreements, Plaintiff transferred \$550,050 into escrow and those funds were transferred to Defendants.

Plaintiff seeks to void and rescind these agreements based on Family Code section 6701 and his status as a minor at the time the agreements were executed.

Plaintiff alleges he never obtained LPR status, Defendants did not return any of the funds deposited into escrow and Defendants lost their status as a U.S. Citizenship and Immigration Services-authorized Regional Center.

On April 3, 2026, Plaintiff filed a complaint against Defendants. On May 28, 2026, Plaintiff filed a First Amended Complaint alleging (1) declaratory relief—void contract; (2) declaratory relief—rescission; (3) money had and received; (4) conversion; and (5) violation of unfair competition law.

On June 23, 2026, Plaintiff filed Applications for Service of Summons by Delivery

to Secretary of State as to each defendant.

Legal Standard

Service on a limited liability company may be effectuated by deliver to the Secretary of State as provided for in Corporations Code section 17701.6 subdivision (c), which states: "If an agent for service of process has resigned and has not been replaced or if the designated agent cannot with reasonable diligence be found at the address designated for personal delivery of the process, and it is shown by affidavit to the satisfaction of the court that process against a limited liability company or foreign limited liability company cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Section 415.10, subdivision (a) of Section 415.20, or subdivision (a) of Section 415.30 of the Code of Civil Procedure, the court may make an order that the service shall be made upon a domestic limited liability company or upon a registered foreign limited liability company by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing the service. Service in this manner shall be deemed complete on the 10th day after delivery of the process to the Secretary of State." (Corp. Code, §17701.6, subd. (c).)

"If an affidavit shows that the designated agent has resigned or cannot be located or that service cannot be effected by any of the methods stated above (¶ 4:172), the court may order service on a limited liability company made by delivery to the Secretary of State, together with a copy of the order authorizing such service. [Corps.C. § 17701.16(c)]" (Id. at ¶4:173.)

Service on a California partnership may be made by delivery to the Secretary of State as provided for in Corporations Code section 16310 subdivision (d)(1), which provides: "If an agent for service of process has resigned and has not been replaced, or if the designated agent cannot with reasonable diligence be found at the address designated for personal delivery of the process, and it is shown by affidavit to the satisfaction of the court that process against a partnership cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Section 415.10, subdivision (a) of Section 415.20, or subdivision (a) of Section 415.30 of the Code of Civil Procedure, the court may

make an order that the service shall be made on a partnership by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing the service." (Corp. Code, §16310, subd. (d)(1).)

Discussion

The Court finds as follows as to each Application to Serve Summons by Delivery to Secretary of State:

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Hollywood Citizen News Lender, LP

Hollywood Citizen News Lender, LP

is a California limited partnership.

(Harding Dec., ¶13.) Plaintiff's

application to serve it by delivering the summons to the Secretary of State is evaluated under Corporations Code section 16310 subdivision (d)(1).

Hollywood Citizen News Lender, LP

designated Capitol Corporate Services, Inc. as its agent for service of process when it formed on April 14, 2017.

(Harding Dec., ¶14; Ex. 1.) Capitol

Corporate Services, Inc. filed a formal Resignation of Agent for Service of Process with the California Secretary of State on December 20, 2024. (Id.)

No replacement agent has been designated. (Id.)

Plaintiff then attempted to serve Hollywood Citizen News Lender, LP at its designated address of record but the building was vacant. (Id. at ¶15.)

Plaintiff establishes that there

is no designated agent for Hollywood Citizen News Lender, LP. The designated agent resigned on December 20, 2024 and no new agent was designated.

Plaintiff satisfies the requirements for leave to serve Hollywood

Citizen News Lender, LP by delivery of the summons the Secretary of State.

Plaintiff's Application to Serve

Hollywood Citizen News Lender, LP by Delivery of the Summons to Secretary of State is GRANTED.

Hollywood International Regional Center, LLC;
Hollywood Citizen News Manager, LLC and Relevant Group LLC (collectively the
“LLCs”)

Counsel Harding submitted the
exact same declaration in support of each of the Applications to Serve by
Delivery to the Secretary of State as to the LLCs. The Applications as to the LLCs will
therefore be evaluated together.

Jason Chen is listed as the
registered agent of Hollywood International Regional Center, LLC; Hollywood
Citizen News Manager, LLC and Relevant Group LLC. (Harding Dec., ¶¶4-7.) The address listed for Jason Chen on each
entity's Statement of Information with the Secretary of State is no longer
valid. (Id. at ¶5.) Plaintiff's process server made two attempts
to serve Chen at a current address listed on his LinkedIn bio and with the
California Board of Accountancy, 7653 Balasiano Avenue, West Hills, California
91304. (Id. at ¶6.) The attempts were made at 7:25 pm and 7:50
am. (Id. at ¶6.)

Plaintiff fails to establish
reasonable diligence in attempting to serve Jason Chen, the designated agent
for service of process for the LLCs, in accordance with Corporations Code
section 17701.16 subdivision (c). In
order to obtain leave to serve the LLCs through the Secretary of State,
Plaintiff had to establish to the satisfaction of the court that he could not
serve Chen with reasonable diligence pursuant to Code of Civil Procedure
sections 415.10 (personal service), 415.20 subdivision (a)(substitute service
at regular business or home address) and 415.30 (mail service with notice of
acknowledgment of receipt. (Corp. Code,
§17701.6, subd. (c).)

The process server attempted
service at Chen's purported business address outside of normal business hours
(7:50 pm and 7:25 am) and only made two attempts. Plaintiff also does not detail any efforts to
locate other possible addresses for Chen, including a home address. Plaintiff does not attest to any attempt at
mail service with notice of acknowledgement of receipt.

Plaintiff's Applications to Serve

Summons on Defendants Hollywood International Regional Center, LLC; Hollywood Citizen News Manager, LLC and Relevant Group LLC by Delivery to the Secretary of State are DENIED.